

Track 1 — Chapter Build Pass

PTAB Trial Proceedings · Inter Partes Review & Post-Grant Review

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: A Note on Sourcing, and the Modern Challenge Landscape

Unlike the other PDFs in this set, this material lives mostly outside the MPEP itself — IPR and PGR are governed primarily by 37 C.F.R. Part 42 and the PTAB Trial Practice Guide, with only limited MPEP cross-references. MPEP Chapter 2600 itself covers the largely phased-out inter partes reexamination procedure, not modern PTAB trials. This PDF is included because IPR/PGR concepts do appear on the exam and are useful contrast cases for ex parte reexamination (Chapter 2200) — treat it as supplementary rather than MPEP-sourced, and verify against 37 C.F.R. Part 42 rather than the MPEP if you want primary-source confirmation.

Rule 1: Inter Partes Review (IPR) Basics (37 C.F.R. Part 42)

PLAIN ENGLISH

Inter partes review (IPR) is a trial proceeding before the PTAB where a third party petitions to challenge patent claims, but **only on §102 (novelty) or §103 (obviousness) grounds based on patents or printed publications** — the same documentary-art limitation as ex parte reexamination, but with a full adversarial trial process (discovery, depositions, oral argument) rather than examiner-driven review.

EXAMPLE

A competitor wanting to challenge a patent's validity based on a strong prior art publication, and wanting an active, adversarial role with discovery and argument (rather than the limited role in ex parte reexamination), would petition for IPR rather than requesting ex parte reexamination.

QUIZ

On what grounds can a patent be challenged in an IPR?

- (A) Any ground, including §101 and §112
- (B) Only §102 or §103, based on patents or printed publications
- (C) Only §112 written description
- (D) Only inequitable conduct

Rule 2: Timing Restrictions on Filing an IPR Petition

PLAIN ENGLISH

An IPR petition generally cannot be filed until **9 months** after a patent's grant (or after termination of a post-grant review, if one was filed) — since post-grant review (PGR) occupies that earlier 9-month window with broader available grounds. A petitioner also generally can't file an IPR more than **1 year** after being served with a complaint alleging infringement of the patent.

EXAMPLE

A company sued for patent infringement in January has generally until roughly one year later to file an IPR petition challenging that patent's validity — waiting too long after being sued forecloses the IPR option (though other invalidity defenses in the litigation itself remain available).

QUIZ

A petitioner is served with an infringement complaint on a given patent. By when must an IPR petition generally be filed?

- (A) Within 30 days
- (B) Within 1 year of being served with the complaint
- (C) There is no deadline
- (D) Within 9 months of the patent's grant only

Rule 3: Post-Grant Review (PGR) — Broader Grounds, Narrower Window

PLAIN ENGLISH

Post-grant review (PGR) is available only for patents governed by the AIA's first-inventor-to-file provisions, and only within **9 months** of grant. Unlike IPR, PGR allows a **broader range of invalidity grounds** — not just §102/§103, but also §101 and §112 issues.

EXAMPLE

A challenger who believes a recently granted AIA patent's claims are ineligible under §101, filing within 9 months of grant, would use PGR rather than IPR, since IPR couldn't reach a §101 eligibility argument at all.

QUIZ

Which of these grounds is available in PGR but NOT in IPR?

- (A) §102 novelty
- (B) §103 obviousness
- (C) §101 eligibility
- (D) None — the grounds are identical

Rule 4: The Institution Decision & Estoppel

PLAIN ENGLISH

The PTAB must decide whether to **institute** (formally begin) an IPR or PGR trial based on whether the petition shows a reasonable likelihood of prevailing (IPR) or that it's more likely than not at least one claim is unpatentable (PGR) — a threshold screening step. If a final written decision issues, the petitioner is generally **estopped** (barred) from later raising, in litigation or another USPTO proceeding, any ground they raised or reasonably could have raised in that IPR/PGR.

EXAMPLE

A petitioner loses an IPR on obviousness grounds after a full trial and final written decision. They generally can't then go to district court and re-raise that same obviousness argument, or other obviousness arguments based on art they reasonably could have raised in the IPR.

QUIZ

After a final written decision in an IPR, what generally happens to arguments the petitioner raised or reasonably could have raised?

- (A) Nothing, they can be freely re-raised anywhere
 - (B) The petitioner is generally estopped from raising them again in litigation or other USPTO proceedings
 - (C) Only the patent owner is estopped
 - (D) Estoppel only applies to arguments not raised at all
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Rule 5: Contrast With Ex Parte Reexamination — Choosing the Right Tool

PLAIN ENGLISH

A challenger choosing between ex parte reexamination (Chapter 2200) and IPR/PGR trades off: reexamination is cheaper and simpler but gives the third-party requester very limited ongoing participation and no estoppel consequence tied to a full trial; IPR/PGR is more expensive and adversarial (with discovery and oral argument) but gives the petitioner a full, active role — at the cost of broad estoppel if they lose.

EXAMPLE

A challenger with a strong, simple prior art reference and limited budget might choose ex parte reexamination for a lower-cost path; a challenger in active litigation, wanting to actively argue and control the invalidity case (accepting the estoppel risk), would more likely choose IPR.

QUIZ

Which of these is a key trade-off of choosing IPR over ex parte reexamination?

- (A) IPR is cheaper and simpler with no downside
 - (B) IPR offers active participation and broader tools, but carries estoppel risk not present in reexamination
 - (C) Ex parte reexamination is only available to patent owners
 - (D) There is no meaningful difference between the two
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Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. A challenger wants to raise a §101 eligibility challenge against a recently granted AIA patent, within 6 months of grant. Which proceeding allows this ground?

- (A) IPR
- (B) Post-grant review (PGR)
- (C) Ex parte reexamination
- (D) None of these allow §101 challenges

2. A petitioner was served with an infringement complaint 14 months ago and has not yet filed an IPR petition. Is IPR still available?

- (A) Yes, no deadline applies
- (B) Likely no — the 1-year bar from service of the complaint has passed
- (C) Yes, as long as it's within 9 months of grant
- (D) Yes, if the patent owner consents

3. After losing a full IPR trial on obviousness grounds (final written decision issued), can the petitioner raise the same ground again in district court litigation?

- (A) Yes, freely
- (B) Generally no — estoppel bars re-raising grounds raised or reasonably raisable in the IPR
- (C) Only if the PTAB grants permission
- (D) Yes, but only within 30 days

4. What is the PTAB's threshold standard for instituting an IPR?

- (A) Preponderance of the evidence on the merits
- (B) A reasonable likelihood of prevailing on at least one claim
- (C) Clear and convincing evidence of invalidity
- (D) No threshold — institution is automatic upon petition

5. True or False: Ex parte reexamination and IPR offer the same level of ongoing third-party participation.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- **IPR**: §102/§103 only, documentary prior art only, available generally starting **9 months after grant**, barred if filed more than **1 year** after being served with an infringement complaint.
- **PGR**: broader grounds (including §101, §112), but only within **9 months of grant**, AIA patents only.
- Institution standards: IPR = **reasonable likelihood of prevailing**; PGR = **more likely than not** unpatentable.
- **Estoppel**: after a final written decision, petitioner generally can't re-raise grounds raised or reasonably raisable, elsewhere.
- IPR/PGR = active, adversarial, PTAB trial process; **ex parte reexamination** = cheaper, examiner-driven, limited third-party role, no equivalent estoppel.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Inter Partes Review (IPR) Basics (37 C.F.R. Part 42)

On what grounds can a patent be challenged in an IPR?

Answer: B

IPR is grounds-limited to novelty/obviousness based on documentary prior art — broader invalidity grounds (like §101 or §112) aren't available in IPR, unlike in district court litigation.

Rule 2: Timing Restrictions on Filing an IPR Petition

A petitioner is served with an infringement complaint on a given patent. By when must an IPR petition generally be filed?

Answer: B

The 1-year bar from being served with an infringement complaint is a key, specific IPR timing rule — distinct from (and in addition to) the general 9-months-after-grant availability window.

Rule 3: Post-Grant Review (PGR) — Broader Grounds, Narrower Window

Which of these grounds is available in PGR but NOT in IPR?

Answer: C

PGR's broader grounds (including §101 and §112) are its key distinguishing feature from IPR's narrower §102/§103-only, documentary-art-limited scope — but PGR's 9-month post-grant window is much narrower than IPR's availability period.

Rule 4: The Institution Decision & Estoppel

After a final written decision in an IPR, what generally happens to arguments the petitioner raised or reasonably could have raised?

Answer: B

Estoppel is one of the most significant strategic consequences of pursuing (and losing) an IPR/PGR — it isn't a free, repeatable challenge; the final written decision has real, binding consequences for the petitioner going forward.

Rule 5: Contrast With Ex Parte Reexamination — Choosing the Right Tool

Which of these is a key trade-off of choosing IPR over ex parte reexamination?

Answer: B

The core trade-off is participation/cost/adversarial process versus the binding estoppel consequence — a frequently tested strategic/conceptual distinction between the two mechanisms.

Chapter Close-Out Quiz

1. (B)

Only PGR (within its 9-month post-grant window) reaches §101 eligibility grounds; IPR is limited to §102/§103 documentary prior art.

2. (B)

The 1-year bar from being served with an infringement complaint has run, generally foreclosing an IPR petition on this patent.

3. (B)

Estoppel from a final written decision bars re-raising grounds that were raised or reasonably could have been raised in the IPR — a major strategic consequence of pursuing (and losing) the proceeding.

4. (B)

"Reasonable likelihood of prevailing" is IPR's institution threshold — a lower bar than the ultimate merits standard used at trial.

5. (B) False

IPR gives the petitioner a full, active adversarial role (discovery, oral argument); ex parte reexamination sharply limits ongoing third-party participation after the initial request.

End of the supplementary PTAB Trials overview. This completes the expanded Track 1 chapter set.